

BEFORE THE STATE BOARD OF PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2020-4983

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE AS A LICENSED PROFESSIONAL COUNSELOR IN THE STATE OF COLORADO OF LAURA ASHLEY MOGDEN, LICENSE NO. LPC 12845,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Professional Counselor Examiners ("Board") and Laura Ashley Mogden ("Respondent"), as follows:

1. Respondent was licensed to practice as a Licensed Professional Counselor ("LPC") in the State of Colorado on January 22, 2016, having been issued license number LPC 12845, and is currently so licensed.

2. The Board has jurisdiction over Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").

3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of the complaint in case number 2020-4983 without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2020-4983. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.

4. Respondent admits the following:

a. Respondent violated the privacy of a client who was represented under the confidential agreement of a GAL who had the privilege.

5. By virtue of the admissions in paragraph 4 above, Respondent admits and the Board finds that Respondent violated section 12-245-224(1)(b) and 12-245-220, C.R.S., which states:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article 245, an applicable provision of article 20 or 30 of this title 12, a rule promulgated pursuant to this article 245 or any order of a board established pursuant to this article 245;

12-245-220. Disclosure of confidential communications - definitions.

(1) A licensee, registrant, or certificate holder shall not disclose, without the consent of the client, any confidential communications made by the client, or advice given to the client, in the course of professional employment. A licensee's, registrant's, or certificate holder's employee or associate, whether clerical or professional, shall not disclose any knowledge of the communications acquired in that capacity. Any person who has participated in any therapy conducted under the supervision of a licensee, registrant, or certificate holder, including group therapy sessions, shall not disclose any knowledge gained during the course of the therapy without the consent of the person to whom the knowledge relates. (2) Subsection (1) of this section does not apply when:

(a) A client, or the heirs, executors, or administrators of a client, file suit or a complaint against a licensee, registrant, or certificate holder on any cause of action arising out of or connected with the care or treatment of the client by the licensee, registrant, or certificate holder;

(b) A licensee, registrant, or certificate holder was in consultation with a physician, registered professional nurse, licensee, registrant, or certificate holder against whom a suit or complaint was filed based on the case out of which the suit or complaint arises; (c) A review of services of a licensee, registrant, or certificate holder is conducted by any of the following: (I) A board or a person or group authorized by the board to make an investigation on its behalf; (II) The governing board of a hospital licensed pursuant to part 1 of article 3 of title 25, where the licensee, registrant, or certificate holder practices or the medical staff of the hospital if the medical staff operates pursuant to written bylaws approved by the governing board of the hospital; or (III) A professional review committee established pursuant to section 12-245-212 (1) if the person has signed a release authorizing the review; (d) (I) A client, regardless of age:

(A) Makes an articulable and significant threat against a school or the occupants of a school; or (B) Exhibits behaviors that, in the reasonable judgment of the licensee, registrant, or certificate holder, create an articulable and significant threat to the health or safety of students,

teachers, administrators, or other school personnel. (II) A licensee, registrant, or certificate holder who discloses information under this subsection (2)(d) shall limit the disclosure to appropriate school or school district personnel and law enforcement agencies. School or school district personnel to whom the information is disclosed shall maintain confidentiality of the disclosed information, regardless of whether the information constitutes an education record subject to FERPA, consistent with the requirements of FERPA and regulations and applicable guidelines adopted under FERPA, but may disclose information in accordance with section 1232g (b)(1) of FERPA and 34 CFR 99.36 if necessary to protect the health or safety of students or other persons. (III) A licensee, registrant, or certificate holder who discloses or fails to disclose a confidential communication with a client in accordance with this subsection (2)(d) is not liable for damages in any civil action for disclosing or not disclosing the communication. This subsection (2)(d)(III) does not rescind any statutory duty to warn and protect specified in, and does not eliminate any potential civil liability for failure to comply with, section 13-21-117.

(IV) (A) This subsection (2)(d) does not apply to an education record that, under FERPA, is exempt from the HIPAA privacy rule. (B) Notwithstanding subsection (6) of this section, this subsection (2)(d) applies to covered entities, as defined in HIPAA. (V) As used in this subsection (2)(d):

(A) "Articulable and significant threat" means a threat to the health or safety of a person that, based on the totality of the circumstances, can be explained or articulated and that constitutes a threat of substantial bodily harm to a person. (B) "FERPA" means the federal "Family Educational Rights and Privacy Act of 1974", 20 U.S.C. sec. 1232g, as amended.

(C) "HIPAA" means the federal "Health Insurance Portability and Accountability Act of 1996", as amended, Pub.L. 104-191. (D) "School" means a public or private preschool; elementary, middle, junior high, or high school; or institution of postsecondary education described in title 23, including the Auraria higher education center created in article 70 of title 23.

(3) The records and information produced and used in the review provided for in subsection (2)(c) of this section do not become public records solely by virtue of the use of the records and information. The identity of a client whose records are reviewed shall not be disclosed to any person not directly involved in the review process, and procedures shall be adopted by a board, hospital, association, or society to ensure that the identity of the client is concealed during the review process itself and to comply with section 12-245-226 (4). (4) Subsection (1) of this section shall not apply to any delinquency or criminal proceeding, except as provided in section 13-90-107 regarding any delinquency or criminal proceeding involving a licensed psychologist. (5) Nothing in this section shall be deemed to prohibit any other disclosures required by law. (6) This

section does not apply to covered entities, their business associates, or health oversight agencies, as each is defined in the federal "Health Insurance Portability and Accountability Act of 1996", as amended by the federal "Health Information Technology for Economic and Clinical Health Act", Pub.L. 111-5, as amended, and the respective implementing regulations.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

ADMONISHMENT

7. On the basis of the findings set forth in paragraphs 4 and 5, the Board hereby admonishes Respondent for violations of section 12-245-224(1)(b) and 12-245-220, C.R.S. This Order is effective as a Letter of Admonition, set forth by section 12-20-404(4), C.R.S. As part of the admonishment, Respondent agrees to the following terms as a Board Order:

CONTINUING EDUCATION

8. Within twelve (12) months of the effective date of this Order, Respondent must successfully complete ten (10) hours of Board-approved professional continuing education ("CE") courses in the areas of Confidentiality and HIPAA. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Board. These hours of CE completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado license or to meet any other licensure requirements.

TERMS AND CONDITIONS

9. Respondent will strictly observe the prohibitions set forth in section 12-245-224, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

10. All expenses incurred or associated with education or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

11. In the event Respondent relocates at any time prior to completing the terms of this Order, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

12. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

13. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

14. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

15. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403 and 12-245-226, C.R.S.

16. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

17. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

18. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

19. This Order shall be admissible as evidence at any hearing held before the Board.

20. This Order shall be a public record in the custody of the Board.

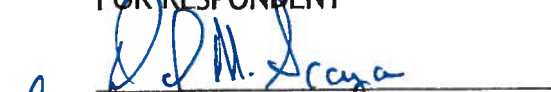
AGREED TO AND ACCEPTED BY:

RESPONDENT



LAURA ASHLEY MOGDEN
LICENSE No. LPC 12845

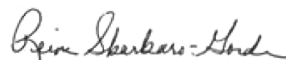
APPROVED AS TO FORM
FOR RESPONDENT



MICHAEL H. LUEDTKE
Hoskin Farina & Kampf, P.C.

AGREED TO AND ORDERED BY:

STATE BOARD OF Licensed Professional Counselors



REINA SBARBARO-GORDON
Program Director

Effective this 21 day of January,
2021